



**JHABUA
POWER**

.....POWER PROJECT

BIDDING DOCUMENTS

FOR

..... PACKAGE

SECTION – VIII

(FORMS AND PROCEDURES)

(BOOK 3 OF 3)

BIDDING DOCUMENT NO. :



**JHABUA
POWER**

.....POWER PROJECT

BIDDING DOCUMENTS

FOR

..... PACKAGE

SECTION – VIII

(FORMS AND PROCEDURES)

(BOOK 3 OF 3)

BIDDING DOCUMENT NO. :

(This document is meant for the exclusive purpose of bidding against this Bid Document No./ Specification and shall not be transferred, reproduced or otherwise used for purposes other than that for which it is specifically issued).

**TABLE OF FORMS AND PROCEDURES,
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4.	Proforma for extension of Bank Guarantee
5.	Proforma of Bank Guarantee for Lumpsum Advance
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7.	List of banks from which Bank Guarantees for Advance/ Security Deposit and Bank Guarantee to be furnished by Bidder/ Contractor can be accepted
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**1. PROFORMA FOR BANK GUARANTEE
FOR BID SECURITY**



**1. PROFORMA FOR BANK GUARANTEE FOR BID SECURITY
(IN LIEU OF CASH DEPOSIT)**

Bank Guarantee No. :

Date :

To

Jhabua Power Ltd (JV of NTPC LTD),
Village Barela, Post – Attaria , Tehsil – Ghansore
Madhya Pradesh-480997

Dear Sir,

In accordance with Invitation for Bids under your Bid Document No.. M/s(***)..... having its Registered/ Head Office at (hereinafter called the “Bidder”) wish to participate in the said bid for Implementation of SAP S4 HANA with RISE Based ERP System at Jhabua power Ltd (JV of NTPC) .

As an irrevocable Bank Guarantee against Bid Security for an amount of(*)..... valid for 165 days from(**)..... required to be submitted by the Bidder as a condition precedent for participation in the said bid which amount is liable to be forfeited on the happening of any contingencies mentioned in the Bidding Documents.

We, the[Name & address of the Bank]..... having our Head Office at.....(#)..... guarantee and undertake to pay immediately on demand by Jhabua Power Ltd (JV of NTPC LIMITED) (hereinafter called the ‘Employer’)..... the amount of(*)..... without any reservation, protest, demand and recourse. Any such demand made by the ‘Employer’ shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder.

This guarantee shall be irrevocable and shall remain valid upto(@)..... . If any further extension of this guarantee is required, the same shall be extended to such required period (not exceeding one year) on receiving instructions from M/s(***).....[Bidder’s Name] on whose behalf this guarantee is issued.

In witness whereof the Bank, through its authorized officer, has set its hand and stamp on this day of 20..... at

.....
(Signature)

.....
(Name)

.....
(Designation with Bank Stamp)

Authorized vide

Power of Attorney No.....

Date.....

Note :

1. (*) The amount shall be as specified in the bidding documents
(**) This shall be the date of opening of Techno-Commercial bids
(#) Complete mailing address of the Head Office of the Bank to be given
(@) This date shall be forty-five (45) days beyond the validity of bid.
(***) Write the name and addresses of all the Joint Venture partners, in case the Bid is submitted by a Joint Venture in terms of Qualifying Requirements.
2. The Bank Guarantee (BG) shall be from a Bank as per provisions of the Bidding Documents.
3. The BG should be on Non-Judicial Stamp paper/ e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed, whichever is higher. The Stamp Paper/ e-Stamp Paper shall be purchased in the name of Bidder/ Bank issuing the guarantee.
4. While getting the Bank Guarantee issued, Bidders are required to ensure compliance to the points mentioned in Bank Guarantee Verification Check List in the Bidding Documents. Bidders are required to fill up this Check List and enclose the same along with the Bank Guarantee.
5. The details of secure SFMS (in case of BGs issued from within India) sent by Bidder's Bank to Employer's Beneficiary Bank details of which are given in ITB must be furnished with the BG.

2. BANK GUARANTEE VERIFICATION CHECKLIST

2. BANK GUARANTEE VERIFICATION CHECKLIST

Sl. No.	Details of Checks	Yes/ No
1	Is the BG on Non-judicial stamp paper/ e-stamp paper of appropriate value, as per Stamp Act ?	
2	Whether date, purpose of purchase of stamp paper and name of the purchaser are indicated on the stamp paper? (The date of purchase of stamp paper should be of any date on or before the date of execution of BG and the stamp paper should be purchased either in the name of the executing Bank/Insurance Company or the Bidder on whose behalf the BG has been issued. The stamp paper (other than e-stamp paper) should be duly signed by the stamp vendor).	
3	In case of BG from Banks abroad, has the BG been executed on Letter Head of the Bank?	
4	Has the executing officer of BG indicated his name, designation and Power of Attorney No./ Signing Power No. etc. on the BG?	
5	Is each page of BG duly signed/ initialed by executant and whether stamp of Bank is affixed thereon? Whether the last page is signed with full particulars under seal of Bank as required in the prescribed proforma?	
6	Does the Bank Guarantee compare verbatim with the Proforma prescribed in the Bid Documents?	
7	Are the factual details such as Bidding Documents No./ Specification No., Amount of BG, validity of BG correctly mentioned in the BG?	
8	Whether overwriting/ cutting, if any on the BG have been properly authenticated under signature & seal of executant?	
9	Whether BG has been issued by a Bank in line with the provisions of Bidding Documents?	
10	In case BG has been issued by a Bank other than those specified in Bidding Document, is the BG confirmed by a Bank in India acceptable as per Bidding Document?	

Date :

Name of Authorised Person

Place :

Designation

3. FORM OF BANK GUARANTEE FOR CONTRACT PERFORMANCE GUARANTEE



3. PERFORMANCE BANK GUARANTEE

To

Jhabua Power Ltd (JV of NTPC LTD),
Village Barela, Post – Attaria , Tehsil – Ghansore
Madhya Pradesh-480997

WHEREAS _____ (name and address of Contractor) (hereinafter called “the Contractor”) has undertaken, in pursuance of Contract _____ No. _____ dated _____ awarded by JPL-NTPC Limited (hereinafter called as “the Employer”) to execute _____ (name of the Contract and brief description of Works) (hereinafter called “the Employer”).

AND WHEREAS it had been stipulated in the said Contract that the Contractor shall furnish the Employer with a Bank Guarantee by a recognized bank for Rs. _____ (Rupees _____) in lieu of the deduction to be made by the contractor or in lieu of the security deposit to be made by the Contractor in lieu of the deduction to be made from the Contractor’s bills for the due fulfilment by the said Contractor of the terms and conditions contained in the said Contract.

We, _____ (indicate the name & address of the Bank) do hereby undertake to pay the amounts payable under this guarantee without any demur, reservation, contest or recourse, merely on a demand from the Employer stating that the amount claimed is by reason of breach by the said Contractor of any of the terms or conditions contained in the Agreement or by reason of the contractor’s failure to perform the said agreement, any such demand made on the Bank shall be conclusive as regards the amount due and payable by the Bank under this guarantee. However, our liability under this Guarantee shall be restricted to an amount not exceeding Rs. _____ and the Employer need not prove or to show grounds or reasons for its demand.

We undertake to pay to the Employer any money so demanded notwithstanding and dispute or disputes raised by the Contractor/Supplier in any suit or proceeding pending before any court or Tribunal relating thereto our liability under this present being absolute and unequivocal. The payments so made by us under this Bond shall be a valid discharge of our liability for payment there under and the contractor/supplier shall have no claim against us for making such payment.

We, _____ (indicate name & address of the Bank) further agree that the guarantee herein contained shall remain in full force and effect during the period that will be taken for the performance of the said Agreement and that it shall continue to be enforceable till all the dues of the Employer under or by virtue of the said Agreement have been fully paid and its claims satisfied or discharged or till the Employer certifies that the terms and conditions of the said Agreement have been fully and properly carried out by the said contractor and accordingly discharges its guarantee.

Unless a demand or claim under this guarantee is made on us in writing on or before the _____ (the date shall be not earlier than 90 days beyond the completion of the defects liability period of the contract), we shall be discharged from all liability under this guarantee thereafter unless the validity of the guarantee is extended.

We, _____ (indicate name of the Bank) further agree with the Employer that the Employer shall have the fullest liberty without our consent and without effecting in any manner our obligations hereunder to vary any of the terms and conditions of the said Agreement or to extend time of performance by the said contractor from time to time or to postpone for any time or from time to time any of the powers exercisable by the Employer against the said contractor and to forbear or enforce any of the terms and conditions relating to the said Agreement and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said Contractor or for any forbearance, act or omission on the part of the Employer or any indulgence by the Employer to the said Contractor or by any such matter or thing whatsoever which under the law relating to sureties would, but for this provision, have effect of so relieving us.

This guarantee will not be discharged due to change in the constitution of the Bank or the contractor/supplier.

We, _____ (indicate name of the Bank) lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Employer in writing.

Dated this _____ day of _____ (month) _____ (Year)

Yours faithfully

Witness:	(Signature).....
.....	(Name).....
(Signature)	(Designation with Bank Seal)
.....	Power of Attorney No.....
(Name)	Date.....
.....	
(Official Address)	

Stamp

Notes:

1. The Bank Guarantee shall be from a Bank as per provisions of the bidding documents. [Please refer Form No. 7 to Section VIII (Part 3 of 3).
2. The BG should be on Non-Judicial Stamp paper/ e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed, whichever is higher. The Stamp Paper/ e-Stamp Paper shall be purchased in the name of Bidder/ Bank issuing the guarantee.
3. While getting the Bank Guarantee issued, Bidders are required to ensure compliance to the points mentioned in Bank Guarantee Verification Check List in the bidding documents Bidders are required to fill up this Check List and enclose the same along with the Bank Guarantee. The details of secure SFMS (in case of BGs issued from within India) or SWIFT (in case of



BGs issued from outside India) sent by Bidder's Bank to Employer's Beneficiary Bank details of which are given in ITB must be furnished with the BG.

- 4 The Bank Guarantee (BG) shall be accompanied with the BG forwarding letter in the format attached as below.

(BG forwarding letter from Bank to Unified Treasury in Bank's letterhead)

To

Jhabua Power Ltd (JV of NTPC Limited),
Village Barela, Post – Attaria , Tehsil – Ghansore
Madhya Pradesh-480997

Sub: Submission of Bank Guarantee Bank Guarantee No.	
Date of Issue	dd.mm.yyyy
Guarantee Amount	Currency Amount
Date of Expiry of BG	dd.mm.yyyy
Last date of lodgement of claim	dd.mm.yyyy
Name, Address and IFSC code of BG issuing Bank	Name: Address: IFSC code:
Contract/Letter of Award/PO No.	
Name & Address of the Applicant / Contractor	Name: Address:

We confirm that SFMS has been sent to your beneficiary bank as below:

- (i) **Account Name: Jhabua Power Ltd.**
- (ii) **Bank Name: AXIS BANK LIMITED**
- (iii) **Account No. : 128010200029698**
- (iv) **Branch: JABALPUR**
- (v) **Bank Address: Axis Bank Ltd, Ground Floor, Panchratan Building , Model Road , Jabalpur, MP - 482 002**
- (vi) **IFSC Code: UTIB0000128**
- (vii) **MICR Code: 482211001**

We also confirm the genuineness of the signatures appearing on the said guarantee/extension and further also confirm that the same has been signed by the competent authority of the bank.

Signature with Seal.

4. PROFORMA FOR EXTENSION OF BANK GUARANTEE



4. PROFORMA FOR EXTENSION OF BANK GUARANTEE

Ref. No. :

Dated :

To

Jhabua Power Ltd (JV of NTPC LTD),
Village Barela, Post – Attaria , Tehsil – Ghansore
Madhya Pradesh-480997

Dear Sirs,

Sub. : Extension of Bank Guarantee No. Dated for[indicate value of Bank Guarantee/Insurance Surety BOND]..... favouring yourselves, expiring on..... on account of M/s(Name of Bidder)..... in respect of Contract for (Insert Package Name)..... for (Insert Project Name)..... Project, Contract No. dated (hereinafter called original Bank Guarantee/Insurance Surety Bond)

At the request of M/s, we Bank/Insurer branch office at and having its head office at do hereby extend our liability under the above mentioned Guarantee/Bond No. dated..... for a further period of years/months from to expire on

Except as provided above, all other terms and conditions of the original Bank Guarantee/Insurance Surety Bond No. dated shall remain unaltered and binding.

Please treat this as an integral part of the original guarantee to which it would be deemed to have been attached.

(Signature).....

(Name).....

(Designation with
Bank Stamp)

Authorised vide

Power of Attorney No.....

Date.....

Dated

Seal of Bank

Note: 1. The extension of the Bank Guarantee should be forwarded to the Unit/ Project/ Corporate Centre, from where the extension has been sought.

2. The extension of BG/Insurance Surety Bond should be on Non-Judicial Stamp paper/ e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG/Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in the State where the BG/Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/ e-Stamp Paper shall be purchased in the name of Bidder/ Bank/Insurer issuing the guarantee/Bond.

5. PROFORMA OF BANK GUARANTEE FOR LUMPSUM ADVANCE

5. PROFORMA OF BANK GUARANTEE FOR LUMP SUM ADVANCE

To
Jhabua Power Ltd (JV of NTPC LTD),
Village Barela, Post – Attaria , Tehsil – Ghansore
Madhya Pradesh-480997

In consideration of the JPL-NTPC Limited, _____ having its registered office at JPL-NTPC Bhawan, SCOPE Complex, 7, Institutional Area, Lodi Road, New Delhi-110 033 (hereinafter called “the Employer” which expression shall unless repugnant to the subject or context include its successors and assigns) having agreed under the terms and conditions of the Award Letter No. _____ dated _____ issued by the Employer which have been unequivocally accepted by _____* _____ in connection with the work of “_____” Specification No. CC_____ (hereinafter called “the said Contract”) to make at the request of the Contractor a lumpsum advance of Rs. _____/- (Rupees _____ only) for utilizing it for the purpose of the Contract on his furnishing a guarantee acceptable to the Employer.

We, _____ Bank incorporated under _____ and having one of our branches at _____ (hereinafter referred to as “the said Bank”) do hereby guarantee the due recovery by the Employer of this said advance with interest thereon as provided according to the terms and conditions of the Contract. If the said Contractor fails to utilize the said advance for the purpose of the Contract and/or the said advance together with Interest thereon as aforesaid is not fully recovered by the Employer, We, _____ Bank hereby unconditionally and irrevocably undertake to pay to the Employer on demand and without demur to the extent of the said sum of Rs. _____/- (Rupees _____ only), any claim made by the Employer on us for the loss or damage caused to or suffered by the Employer by reason of the Employer not being able to recover in full the said sum of Rs. _____/- (Rupees _____ only) with interest as aforesaid.

2. We, _____ Bank further agree that the Employer shall be the sole judge of and as to whether the said Contractor has not utilized the said advance or any part thereof for the purpose of the Contract and the extent of loss or damage caused to or suffered by the Employer on account of the said advance together with interest not being recovered in full and the decision of the Employer that the said Contractor has not utilized the said advance or any part thereof for the purpose of the Contract and as to the amount or amounts of loss or damage caused to or suffered by the Employer shall be final and binding on us.

3. We, the said Bank, further agree that the Guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said Contract and till the said advance with interest has been fully recovered and its claims satisfied or discharged and till Employer certifies that the said advance with interest has been fully recovered from the said Contractor, and accordingly shall have no claim under this Guarantee after 30 (thirty) days from the date of satisfactory completion of the said Contract (as per the mutually agreed Work schedule) i.e. upto and inclusive of _____(date) unless a notice of the claim under this Guarantee has been served on the Bank before the expiry of the said period i.e. _____ (date) in which case the same shall be enforceable against the Bank notwithstanding the fact, that the same is enforced after the expiry of the said period.
4. The Employer shall have the fullest liberty without effecting any way the liability of the Bank under this Guarantee or Indemnity, from time to time, to vary any of the terms and conditions of the said Contract or the advance or to extend time of performance by the said Contractor or to postpone for any time and from time to time any of the powers exercise able by it against the said Contractor and either to enforce or forbear from enforcing any of the terms and conditions governing the said Contract or the advance available to the Employer and the said Bank shall not be released from its liability under these presents by any exercise by the Employer of the liberty with reference to the matters aforesaid or by reasons of time being given to the said Contractor or any other forbearance, act or omission on the part of the Employer or any indulgence by the Employer to the said Contractor or of any other matter or thing whatsoever which under the law relating to sureties would, but for this provision, have the effect of so releasing the Bank from its such liability.
5. It shall not be necessary for the Employer to proceed against the Contractor before proceeding against the Bank and the Guarantee herein contained shall be enforceable against the Bank notwithstanding any security, which the Employer may have obtained or obtain from the Contractor shall at the time when proceedings are taken against the Bank hereunder, be outstanding or unrealised.
6. We, the said Bank, lastly undertake not to revoke this Guarantee during its currency except with the previous consent of the Employer in writing and agree that any change in the Constitution of the said Contractor or the said Bank shall not discharge our liability hereunder.

If any further extension of this Guarantee is required the same shall be extended to such required periods on receiving instructions from M/s. _____, on whose behalf this Guarantee is issued.



Notwithstanding anything contained herein before our liability under this Guarantee is restricted to Rs. _____/- (Rupees _____ only) together with interest. Our undertaking shall commence from the date of execution and shall remain in force upto _____

Dated this _____ day of _____ 20 _____

In presence of

For and on behalf of (the Bank)

Witness:

(Signature).....

.....
(Signature)

(Name).....

.....
(Name)

(Designation with
Bank Seal)

.....
(Official Address)

Power of Attorney No.....

Date.....

Stamp

The above guarantee is accepted by the Employer.

For an On behalf of JPL-NTPC Limited
(_____ Super Thermal Power Project)

NOTES :

*For Proprietary Concerns

Shri _____ son of _____ resident of _____ carrying on business under the name and style of _____ at _____ (hereinafter called "the said Contractor" which expression shall unless the context requires otherwise include his heirs, executors, administrators and legal representatives).

* For Partnership Concerns

*M/s. _____ a partnership firm with its office _____ (hereinafter called "the said Contractor" which expression shall unless the context requires otherwise include their heirs, executors, administrators and legal representatives); the names of their partners being (i) Shri _____ S/o _____ (ii) Shri _____ S/o _____ etc.

*** For Companies**

*M/s _____ a company under the Companies Act, 1956 and having its registered office _____ in the State of _____ (hereinafter called "the said Contractor" which expression shall unless the context requires otherwise include its administrators, successors and assigns.)

1. (*) Write the name and addresses of all the Joint Venture partners, in case the bid is submitted by a Joint Venture in terms of Qualifying Requirements.
2. The Bank Guarantee shall be from a Bank as per provisions of the bidding documents.
3. The Stamp paper of appropriate value shall be purchased in the name of guarantee issuing Bank/Bidder.
4. While getting the Bank Guarantee issued, Bidders are required to ensure compliance to the points mentioned in Bank Guarantee Verification Check List in the bidding documents Bidders are required to fill up this Check List and enclose the same along with the Bank Guarantee.

**6. PROFORMA FOR BANK GUARANTEE
TO BE FURNISHED BY ASSOCIATE(S)**

-NOT APPLICABLE-

**7. LIST OF BANKS FROM WHICH BANK GUARANTEES FOR
ADVANCE/ SECURITY DEPOSIT TO BE FURNISHED BY
BIDDER/ CONTRACTOR**

**7. BANKS FROM WHICH BANK GUARANTEES FOR
ADVANCE / SECURITY DEPOSIT TO BE FURNISHED BY
BIDDER/CONTRACTOR CAN BE ACCEPTED**

UPDATED SCHEDULED COMMERCIAL BANK LIST

A STATE BANK OF INDIA

B NATIONALISED BANKS

- 1 Bank of Baroda
- 2 Bank of India
- 3 Bank of Maharashtra
- 4 Canara Bank
- 5 Central Bank of India
- 6 Indian Overseas Bank
- 7 Indian Bank
- 8 Punjab National Bank
- 9 Union Bank of India
- 10 Punjab & Sind Bank
- 11 UCO Bank

C SCHEDULED PRIVATE BANKS (INDIAN BANKS)

- 1 Axis Bank Ltd
- 2 Bandhan Bank Limited
- 3 CSB Bank
- 4 City Union Bank
- 5 DCB Bank Ltd
- 6 Dhanlaxmi Bank Ltd
- 7 Federal Bank Ltd
- 8 HDFC Bank Ltd
- 9 IICI Bank Ltd
- 10 IndusInd Bank Ltd
- 11 IDFC FIRST Bank Limited
- 12 Jammu & Kashmir Bank Ltd
- 13 Karnataka Bank Ltd
- 14 Karur Vysya Bank Ltd
- 15 Kotak Mahindra Bank
- 16 Lakshmi Vilas Bank Ltd
- 17 Nainital Bank Ltd
- 18 RBL Bank Limited
- 19 South Indian Bank Ltd
- 20 Tamilnad Mercantile Bank Ltd
- 21 Yes Bank Ltd
- 22 IDBI Bank Ltd.

D SCHEDULED PRIVATE BANKS (FOREIGN BANKS)

- 1 AB Bank Ltd
- 2 Abu Dhabi Commercial Bank PJSC
- 3 American Express Banking Corporation
- 4 Australia & Newzealand Banking Group Limited
- 5 Barclays Bank Plc
- 6 Bank of America
- 7 Bank of Bahrain & Kuwait B.S.C.
- 8 Bank of Ceylon
- 9 Bank of China Limited
- 10 Bank of Nova Scotia
- 11 BNP Paribas
- 12 Citi Bank NA
- 13 Cooperatieve Rabobank UA
- 14 Crédit Agricole Corporate and Investment Bank
- 15 Credit Suisse AG
- 16 CTBC Bank Co Ltd
- 17 DBS Bank India Ltd
- 18 Deutsche Bank A.G.
- 19 Doha Bank Q.P.S.C
- 20 Emirates NBD Bank (PJSC)
- 21 First Abu Dhabi Bank PJSC
- 22 FirstRand Bank Ltd
- 23 HSBC Ltd
- 24 Industrial & Commercial Bank of China Ltd
- 25 Industrial Bank of Korea
- 26 JP Morgan Chase Bank, National Association
- 27 JSC VTB Bank
- 28 KEB Hana Bank
- 29 Kookmin Bank
- 30 Krung Thai Bank Public Company Ltd
- 31 Mashreq Bank PSC
- 32 Mizuho Bank Ltd
- 33 MUFG Bank, Ltd
- 34 NatWest Markets Plc
- 35 PT Bank Maybank Indonesia TBK
- 36 Qatar National Bank (Q.P.S.C.)
- 37 Sberbank
- 38 SBM Bank (India) Ltd
- 39 Shinhan Bank
- 40 Societe Generale
- 41 Sonali Bank Ltd
- 42 Standard Chartered Bank
- 43 Sumitomo Mitsui Banking Corporation
- 44 United Overseas Bank Ltd
- 45 Westpac Banking Corporation
- 46 Woori Bank



**JHABUA
POWER**

***Note - Any Addition/ Deletion/ Modification in Bank list shall be as per changes in Second Schedule List by RBI from time to time.**

8. FORM OF BANK GUARANTEE FOR REMOVAL OF PLANT AND EQUIPMENT FROM THE SITE

**8. FORM OF BANK GUARANTEE FOR REMOVAL OF PLANT AND
EQUIPMENT FROM THE SITE**

To

Jhabua Power Ltd (JV of NTPC LTD),
Village Barela, Post – Attaria , Tehsil – Ghansore
Madhya Pradesh-480997

In consideration of the Jhabua Power Ltd (JV of N.T.P.C. Ltd., (.....T.P.P.) (hereinafter called “the Employer” which expression shall unless repugnant to the subject or context include its successors and assigns) having agreed under the terms and conditions of Contract. No..... dated.....made between* and the Employer in connection with(hereinafter called “the said Contract”) to permit the Contractor to remove the plant and equipment mentioned in the Schedule hereto hypothecated to the Employer as security against a loan of Rs..... with interest as provided in the Contract granted to the Contractor by the Employer from the site to any other works of the Contractor on his furnishing an acceptable Bank guarantee, we the..... Bank. (hereinafter referred to as “the said Bank”) and having our registered office at..... do hereby undertake and that upon the Contractor failing to bring back to the site the said plant and equipment or any part thereof and to unconditionally pay the amount claimed by the Employer on demand and without demur to the extent of Rs (Rupees..... only)(to be specified by the Employer at the appropriate time).

We Bank further agree that the Owner shall be the sole judge of and as to whether the said contractor has failed to bring the said plant and equipment or any part thereof back to the site and the extent of loss, damage, costs, charges and expenses caused to or suffered by or that may be caused to or suffered by the Owner on account thereof and the decision of the Owner that the said Contractor has so failed and as to the amounts of loss, damage, costs charges and expenses caused to or suffered by or that may be caused to or suffered by the Owner from time to time shall be final and binding on us.

We, the said bank further agree that the Guarantee herein contained shall remain in full force and effect till the Employer certifies that the said plant and equipment have been brought back to the site or the said loan of Rs. with interest has been repaid to the Employer in full, and accordingly discharges this Guarantee or till (to be specified by the Employer prior to the issue of this guarantee), whichever is later.

It shall not be necessary for the Employer to proceed against the Contractor before making a demand on the Bank and the guarantee herein contained shall be enforceable against the Bank, notwithstanding any security which the Employer may have obtained from the Contractor and in force at the time of making such demand on the Bank.

We, the said Bank lastly undertake not to revoke this Guarantee during its currency except with the previous consent of the Employer, in writing and agree that any change in the Constitution of the said Contractor or the said Bank shall not discharge our liability hereunder.



Dated thisday of20.....

For and on behalf of the Bank.....

Common Seal of the Bank

Signature.....

Name.....

In presence of

Designation.....

Authorisation No.

Witness :

1.

2.

The above Guarantee is accepted by
(JPL-NTPC Limited)
(..... Thermal Power Project)

For and on behalf of the
(JPL-NTPC Limited)
(.....Thermal Power Project)

Date
(Name and Designation)

Note :

*** For Proprietary Concerns**

Shri.....son ofresident of
carrying on business under the name and style of at.....
(hereinafter called. "the said Contractor" which expression shall unless the context requires otherwise
include his heirs, executors administrators and legal representatives).

*** For Partnership Concerns**

M/s.....a partnership firm with its office at.....
(hereinafter called "the said Contractor" which expression shall unless the context requires otherwise
include their respective heirs executors, administrators and legal representatives); the name of
partners being (i) Shri..... S/o
.....
(ii) Shri..... S/o etc.

*** For Companies**

M/sa company registered under the Companies Act, 1956 and having its registered office at.....in the State of (hereinafter called "the said Contractor" which expression shall unless the context requires otherwise include its administrators, successors and assigns).

1. Bidder to fill up the check list as per the proforma enclosed for submitting the Bank Guarantees.
- 0
- 2 BG shall be on non judicial stamp paper of appropriate value as per stamp Act prevailing in the state(s) where the BG is submitted or is to be acted upon or the rate prevailing in the state where the BG is executed, whichever is higher.

Witness: (Signature).....

..... (Name).....

(Signature) (Designation with
Bank Seal)

.....
(Name) Power of Attorney No.....

.....
(Official Address) Date.....

Stamp

- 1 (*) Write the name and addresses of all the Joint Venture partners, in case the bid is submitted by a Joint Venture in terms of Qualifying Requirements.
2. The Bank Guarantee shall be from a Bank as per provisions of the bidding documents.
3. The Stamp paper of appropriate value shall be purchased in the name of guarantee issuing Bank/Bidder.
4. While getting the Bank Guarantee issued, Bidders are required to ensure compliance to the points mentioned in Bank Guarantee Verification Check List in the bidding documents Bidders are required to fill up this Check List and enclose the same along with the Bank Guarantee.

9. FORM OF HYPOTHECATION DEED



**9. FORM OF HYPOTHECATION DEED
(ON NON-JUDICIAL STAMP PAPER OF APPROPRIATE VALUE)**

To
Jhabua Power Ltd (JV of NTPC LTD),
Village Barela, Post – Attaria , Tehsil – Ghansore
Madhya Pradesh-480997

Dear Sir,

In consideration of[Employer's Name]..... (hereinafter referred to as the 'Employer', which expression shall, unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/s.....[Contractor's Name]*..... with its Registered/Head Office at (hereinafter referred to as the 'Contractor' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract, by issue of Employer's Letter of Award No. dated and the same having been unequivocally accepted by the Contractor, resulting into a Contract bearing No. dated..... valued at for[Name of Contract](hereinafter called the .Contract.) and the Employer having agreed to make an interest bearing advance (said 'Advance') of Rs. (Rupees only) to the Contractor for plant and equipment described in the Schedule hereto specifically acquired by the Contractor for the Works and brought to Site against hypothecation of the said plant and equipment in the name of the Employer.

The Contractor hereby declares that he has paid in full the purchase price of each and every one of the Plant & Equipment described in the Schedule hereto and that the same are the absolute property of the Contractor and that the same have not been sold, pledged, mortgaged or transferred by him and the same is free from encumbrances.

The Contractor hereby hypothecates, assigns and transfers to the Employer, the plant and equipment described in the Schedule hereto in favour of the Employer as security for the due repayment of the said advance with interest thereof.

The Contractor hereby agrees that he shall repay to the Employer the said advance of Rs. (Rupees only) together with interest thereon as aforesaid and agrees that the said advance be recovered by the Employer by making deductions in the manner provided in Clause of the General Conditions of Contract and other conditions of the Award letter from the claims made by the Contractor against the Employer for on account payment.'

The Contractor further agrees that so long as any amount remains payable to the Employer by the Contractor in respect of the said advance of Rs. _____ only, he shall not sell, pledge, hypothecate, transfer, part with the Plant and Equipment described in the Schedule hereto.

The Contractor also agrees that if the said advance of Rs. _____ shall not be repaid by the Contractor or recovered in the manner described above by the said _____ day of _____ due to any reason whatsoever or the said Contract has been determined earlier or cancelled or if the Contractor shall sell, pledge, mortgage, transfer, part with and equipment or any part thereof or the Contractor or any of the partners is adjudged insolvent or the Contractor is to be wound up or makes any composition or arrangement with its creditors or the Contractor shall commit breach of any of the terms and conditions or covenants as herein contained or if any of the said plant and equipment or if any other property what-so-ever belonging to the Contractor has been sold or attached for a period of not less than twenty-one (21) days in execution of the decree of any court for payment of money, the whole of the said advance of Rs. _____ or such part thereof as may have remained unpaid or unrecovered together with interest thereon shall forthwith become due and payable. The Contractor also agrees that the Employer may on the happening of any of the aforesaid events or in the event of the said advance or any part thereof becoming due and payable and has not been paid or recovered or cannot be recovered as provided in the said conditions, seize and take possession of the said plant and equipment (and either remain in possession thereof without removing the same or else may remove and same) and sell the said plant and equipment or any of them either by public auction or private contract and may out of the sale proceeds retain the balance of the said advance and interest thereon remaining unpaid and unrecovered and all costs, charges and expenses and payments incurred or made in maintaining, defending or protecting the rights of the Employer hereunder and shall pay over the surplus, if any, to the Contractor.

The Contractor also agrees that he shall at all times during the continuance of the security and at the expense of the Contractor insure and keep insured the plant and equipment described in the Schedule hereto for the full value thereof in the joint names of the Contractor and the Employer with an insurance company to be approved by the Engineer-in-Charge against the risk of loss or damage from whatever cause arising other than the Excepted Risks. During the continuance of the security, the Contractor shall pay all premia and sums of money necessary for keeping such insurance on foot and the insurance policy and receipts in original for premia paid shall be deposited with the Engineer-in-Charge and the Contractor shall assign all his rights, title and interest in the policy to the Employer.

The Contractor also agrees that he shall not permit or suffer the said plant and equipment or any part thereof to be destroyed or damaged or used or to be used or to deteriorate in a greater degree than it would deteriorate by reasonable wear and tear thereof in the performance of the Contract.

In the event of any damage or loss happening to the said plant and equipment or any part thereof from whatever cause other than the Excepted Risks, the Contractor agrees that he shall forthwith have the same repaired or replaced as the case may be or arrange for payment of the entire amount recovered or to be recovered from the insurance company to the Employer towards the payment of the said advance of Rs. _____

Upon repayment or recovery in full of the amount secured on account of this hypothecation deed the said plant and equipment secured hereunder shall stand released from hypothecation but this is without prejudice to the right of the Employer under any other conditions of the Contract.

SCHEDULE ABOVE REFERRED TO

Sl. No.	Particulars of Plant and Equipment	Nos.	Purchase price/ price considered reasonable by Engineer-in-Charge	Total Price	Advance (75% of Col.5)
1	2	3	4	5	6

Dated this day of 20..... at

WITNESS

..... (Signature)

..... (Name)

..... Printed Name of Authorised person
having Power of attorney.....
Designation.....

Common Seal.....

NOTE :

*** For Proprietary Concerns**

Shri _____ son of _____ resident of _____ carrying on business under the name and style of _____ at _____ (hereinafter called "the said Contractor" which expression shall unless the context requires otherwise include his heirs, executors, administrators and legal representatives).



*** For Partnership Concerns**

M/s. _____ a partnership firm having its registered office at _____ (hereinafter called "the said Contractor" which expression shall unless the context requires otherwise include and their respective heirs, executors, administrators and legal representatives) the partners of the firm being (i) Shri _____ s/o _____ (ii) and Shri _____ s/o _____ etc

*** For Companies**

M/s _____ a company under the Companies Act, 1956, and having its registered office at _____ in the State of _____ (hereinafter called "The said Contractor" which expression shall unless the context requires otherwise include its successors and assigns).

10. PROFORMA OF
“CONTRACT AGREEMENT”

10. PROFORMA OF "CONTRACT AGREEMENT"
(to be executed on proper non-judicial stamp paper)

This Contract Agreement made thisday of
(month) two thousand and year
..... between Jhabua Power Ltd (JV of JPL-NTPC Limited, a company
incorporated under the Companies Act, 1956, having its Site Office : Village Barela, Post Office-Attaria,
Tehsil-Ghansore, District Seoni-480997, Madhya Pradesh (hereinafter referred to as "Employer" as "Jhabua
Power Ltd (JV of JPL-NTPC)" which expression shall include its administrators, successors, executors
and assigns) or the one part : And a company incorporated under the
Companies Act 1956 having its registered office at

(OR)

M/S(Partnership Firm) registered under the Indian
Partnership Act 1932 having its Head Office atand consisting of
.....Partners namely

(OR)

M/S a proprietary concern having its Principal Place of
Business at and owned and controlled by its Sole Proprietor
namely (hereinafter referred to as the "Contractor" which
expression shall include its administrators, successors, executors and permitted assigns) of the other
part.

WHEREAS JPL-NTPC Limited desirous of setting up its Power Project at
District with an ultimate capacity of)*
.....MW (hereinafter called the "Project") has invited bids for
..... (briefly describe scope of work as per LOA) for the
.....* stage of the Project with the capacity of
.....* MW as per its Bid Specification No

AND WHEREAS the Contractor had participated in the above referred bidding vide their proposal
No.....dt.....including its amendments, if any and Employer after
examining the said proposal accepted their aforesaid proposal and awarded the Contract to the
Contractor on terms and conditions more specifically contained in its Letter of Award No.
.....dtand the documents referred to therein, which have
been unequivocally accepted by the Contractor resulting into a concluding "Contract", hereinafter
called the "Contract".

NOW THEREFORE THIS DEED WITNESSETH AS UNDER:

1.0 AWARD OF CONTRACT

1.1 The Employer has already awarded the CONTRACT to the Contractor for the work of.....on the terms and conditions contained in its Letter of Award No/GeM Contract No.datedthe documents referred to therein and under these presents. The contract has taken effect from i.e. the date of issue of the aforesaid Letter of Award. The terms and expressions used in this Agreement shall have the same meaning as are assigned to them in the "Contract" referred to in the succeeding Article.

2.0 CONTRACT

The Contract shall be performed strictly as per the terms and conditions stipulated herein, in the Contract Documents and in the Letter of Award (hereinafter collectively referred to as "Contract").

2.1 Contract Documents shall mean:—

A. Invitation For Bids No.dated and Bidding documents in respect of Specification No.issued vide Letter No.datedconsisting of:

- i) General Conditions of Contract for Civil Works including all amendments issued vide its letter(s) No.(s) dated (Section - IV).
- ii) Special Conditions of Contract.....(Section - V).
- iii) Technical Specifications and Drawings including amendments issued vide its Letter No.dated (.....(Section – VI).

Sl. No.	Drawing	Title

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The above drawings are tentative and are meant for bidding purpose only and are not the final drawings nor show the full range of the work under scope of work. Work has to be executed according to the Final drawings with latest additions, alterations and modifications if any from time to time as required or approved by the Engineer-in-Charge and also according to any other relevant drawing that would be supplied to the Contractor progressively during the execution of the Contract.

- iv) Schedule of Quantities* (Section - VII).
- v) Forms & Procedures
- B. Contractor's Proposal No. datedincluding its amendments if any received and opened on
- C. Agreed Minutes of Meeting held onbetween Employer/JPL-NTPC and the Contractor.*
- D. Integrity pact (IP) signed between the Employer and the Bidder / Contractor (if applicable)

- 2.2 LETTER OF AWARD: The Letter of Award shall mean the Employers letter no. datedtogether with its amendments if any.

All the aforesaid Contract Documents and Letter of Award above shall form an integral part of this Contract Agreement, in so far as the same or any part thereof is not in conflict with the Documents (Section I, II, III, IV, V, VI & VII, VIII in Para 2.1 and 2.2 above and what has been specifically agreed to by the Employer and brought out in its Letter of Award and subsequent amendment if any. Any matter in the Contractor's Proposal referred to in sub-clause B of Para 2.1 above inconsistent therewith, contrary or repugnant thereto or any deviations taken by the Contractor in its "Proposal" but not agreed to specifically by the Employer in its Letter of Award shall not be given effect to and shall be deemed to have been withdrawn by the Contractor without any cost implication to EMPLOYER., For the sake of brevity, this Contract Agreement alongwith its aforesaid Contract Documents and the Letter of Award shall be referred to as the "Contract".

3.0 CONDITIONS & COVENANTS

- 3.1 The scope of work under the Contract shall include
- 3.2 The scope of work under the Contract as specified above, consideration, terms of payment, loans and advances, price variation, security deposit, taxes wherever applicable, insurance, agreed time schedule, compensation for delay and all other terms and conditions are contained in the Contract and the Contract shall be duly performed by the Contractor strictly and faithfully in accordance with the terms of this Contract.
- 3.3 The scope of Works shall also include all such items which are not specifically mentioned in the Contract, but which are necessary for the satisfactory completion of the entire scope of works envisaged under this contract unless otherwise specifically excluded from the scope in the Contract.

- 3.4 The progress of work shall conform to the agreed work schedule.
- 3.5 This Contract Agreement constitutes full and complete understanding between the parties and terms of these presents. It shall supersede all prior correspondence to the extent of inconsistency or repugnancy to the terms and conditions contained in the Contract Agreement. Any modifications of the Contract Agreement shall be effected only by written instruments signed by the authorized representatives of both the parties.
- 3.6 Time is the essence of the Contract and it shall be strictly adhered to.
- **3.7** It is expressly understood and agreed by and between the Contractor and the Employer that the Employer is entering into this agreement solely on its own behalf and not on behalf of any other person or entity. In particular, it is expressly understood and agreed that the Govt. of India is not a party to this Agreement and has no liabilities, obligations or rights hereunder. It is expressly understood and agreed that the Employer is an independent legal entity with power and authority to enter into Contracts solely on its own behalf under the applicable laws of India and the general principles of Contract Law. The Contractor expressly agrees, acknowledges and understands that the Employer is not an agent, representative or delegate of the Govt. of India. It is further understood and agreed that the Govt. of India is not and shall not be liable for any acts, omissions, commissions, breaches or other wrongs arising out of the Contract. Accordingly, Contractor expressly waives, releases and foregoes any and all actions or claims, including cross claims, impeder claims, or counter claims against the Govt. of India arising out of this Contract and covenants not to sue the Govt. of India as to any manner, claim, cause of Action or thing whatsoever arising of or under this agreement.
- 4.0 The total contract price for the entire scope of this contract as detailed in Clause No. of Letter of Award is (.....)
- 5.0 The Terms of Payment is governed by Clause of GCC (Section - IV).
- 6.0 NO WAIVER OF RIGHTS:**
- 6.1 Neither the inspection by the Employer or the Engineer-in-Charge or any of the officials, employees or agents nor any order by the Employer or the Engineer-in-Charge for payment of money or any payment for or acceptance of, the whole or any part of the Works by the Employer or the Engineer-in-Charge nor any extension of time nor any possession taken by the Engineer-in-charge shall operate as Waiver of any provisions of the contract, or of any power herein reserved to the Employer, or any right to damages herein provided, nor shall any waiver of any breach in the contract be held to be a waiver of any other or subsequent breach.

7.0 SETTLEMENT OF DISPUTES

7.1 It is specifically agreed by and between the parties that all the differences or disputes arising out of the Contract or touching the subject matter of the Contract shall be decided by process of Settlement of Disputes as specified in Clause 7 of the General Conditions of the Contract as amended and the provisions of the Arbitration & Conciliation Act, 1996 including any statutory modifications or re-enactment thereof and the rules made thereunder shall apply and Delhi Courts alone shall have exclusive jurisdiction in all matters arising under this Contract. The arbitrator shall give reasoned/speaking award.

7.2 Governing Laws

The laws applicable to this contract shall be the laws in force in India.

7.3 Notice of Default

Notice of default given by either party to the other party under the Contract shall be in writing and shall be deemed to have been duly and properly served upon the parties hereto if delivered against acknowledgement or by telex or by registered mail with acknowledgement due addressed to the signatories at the addresses mentioned herein above.

IN WITNESS WHEREOF, the parties through their duly authorised representatives have executed these presents (execution there-of has been approved by the competent authorities of both the parties) on the day, month and year first above mentioned at #
.....

**FOR AND ON BEHALF OF
JPL-NTPC Limited**

WITNESSES :

1.	:	
(Signature)		(Employer's Signature)
.....	:	
(Name)		(Printed Name)
2.	:	
(Designation)		(Designation)
		
		(Company's Stamp)
	:	FOR AND ON BEHALF OF
		M/S.
		
		



JHABUA
POWER

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1.	:	
(Signature)		(Contractor's Signature)
.....	:	
(Name)		(Printed Name)
.....	:	
(Designation)		(Designation)
	:	
		(Company's Stamp)

NOTE:

- * Strike whichever is not applicable.
- # Here mention the place where contract is signed.

11. PROFORMA OF “INDEMNITY BOND” FOR “EMPLOYER ISSUE MATERIALS”

11. PROFORMA OF INDEMNITY BOND” FOR “EMPLOYER ISSUE MATERIALS”

(On non-judicial paper of appropriate value and to be stamped in accordance with Stamp Act. The stamp paper to be in the name of Executing Contracting Firm/ Company)

This bond of indemnity made this day of by [Contractor's Name]*, a company registered under the Companies Act, 1956/ Partnership firm/ Proprietary concern having with its Registered/ Head Office at (hereinafter referred to as the 'Contractor' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) in favour of[Employer's Name]..... (hereinafter referred to as the 'Employer', which expression shall, unless repugnant to the context or meaning thereof include its successors, administrators and assigns)

WHEREAS [Employer's Name]..... has awarded to the Contractor, a Contract by issue of Employer's Letter of Award No. dated and in terms of the said Contract, the Employer has agreed to issue from time to time to the Contractor according to the requirements for incorporation in the Works under the said Contract, the 'Employer Issue Materials' viz. 'Cement' and/or 'Reinforcement Steel' and/or 'Structural steel' '**' (hereinafter called 'Employer Issue Materials') necessarily required for performance of the aforesaid Contract.

AND WHEREAS one of the conditions for the issue of the 'Employer Issue Materials' is that the Contractor shall furnish an Indemnity Bond in favour of the Employer covering the full value for the total quantities of 'Employer Issue Materials' which shall remain in the safe custody of the Contractor during the execution of the Contract.

NOW THIS Indemnity Bond witnesseth as follows:

- 1.0 THAT in consideration of the various Employer Issue Materials as aforesaid issued/ to be issued free of cost by Employer to the Contractor from time to time as per requirements for the purpose of the performance of the said Contract valued at Rs., the Contractor hereby undertakes to indemnify and keep Employer indemnified, for the full Value of the said Employer Issue Materials. The Contractor hereby acknowledges the receipt of the said Employer Issue Materials as per details given in Schedule attached hereto. Further the Contractor agrees to acknowledge the receipt of the subsequent Employer Issue Materials as will be issued by Employer in the form of schedules consecutively numbered which shall be attached to this Indemnity Bond so as to form integral part of this Bond.
- 2.0 That in terms of the said Contract, the maximum quantity of "Employer Issue Materials" at any point of time during the currency of the Contract shall not exceed the quantity as is identified herein below in column 'd' and its value for the purpose of Indemnity Bond as per clause of are as given below :

Sl. No.	Name of Items of Employer Issue Materials	Total Qty. in Contract (M.T.)	Max. Qty. at any point of time (M.T.)	Rate @ Rs.	Total amount (Rs. in Millions) for total Qty. in the Contract
a.	b.	c.	d.	e.	f. (c x e)
1.	Cement (in bags or silos)				
2.	Reinforcement Steel (in various sizes and lengths)				
3.	Structural steel (in various sizes & lengths)				

□□f = Total Value of this I.B. = Total Value in Rs. Millions

- 3.0 Notwithstanding the above maximum quantity (Column 'd' above) of 'Employer Issue Materials' that remain in the custody of the Contractor at any point of time, the actual issuance of materials with the aforesaid total limit shall be governed by the actual programme of execution of work as may be agreed to between the Contractor and the Employer from time to time. The issuance of lesser quantities and/or the availability of balance unused quantity at site of 'Employer Issue Materials' shall not in any way dilute the obligation of the Contractor under this Indemnity Bond except that its value in such case will stand reduced to the value of such materials actually with the Contractor computed at the same unit rate as mentioned in para 2.0 above.
- 4.0 That the value of Indemnity Bond as brought out in para 2.0 and 3.0 above are linked with the following unit rate of these materials.
- Cement @ Rs. i.e., Procurement Rate +25%.
 - Reinforcement steel : @ Rs. i.e. Max. rate of nearest stockyard of SAIL for any section inclusive of GST + 25%.
 - Structural steel : @ Rs. i.e. Average rates of nearest stockyard of SAIL for structural sections, pipes & plates inclusive of GST + 25%.

- 4.1 In the event of any upward revision of the aforesaid rate by the concerned authorities, the value of the Indemnity Bond shall be enhanced proportionately by executing fresh bond.
- 5.0 That the Contractor undertakes to keep these 'Employer Issue Materials' at the Employer's project site at a place duly notified by the Engineer-in-Charge and shall not take out these materials or allow the same to be taken out of the project site under any circumstances whatsoever.
- 6.0 That Contractor shall remain absolutely responsible for the safe custody and protection of the said 'Employer Issue Materials' against all risks whatsoever till these are duly incorporated in the Works as per terms of the contract and non utilised materials will be promptly returned to Employer in accordance with said Contract and as such the Contractor do hereby undertakes to indemnify and shall keep Employer indemnified against any loss or damage or conversion that may be caused or done to the said 'Employer Issue Materials' while in the Contractor's possession/custody. These materials shall however, at all times, be available for inspection by the Engineer-in-Charge from time to time.
- 7.0 Further, Employer shall have the absolute right at all times to take possession of the 'Employer Issue Materials' in whatever form the Employer Issue Materials may be, if in its opinion, the 'Employer Issue Materials' are likely to be endangered, misutilised or converted to uses other than those specified in the Contract, by any acts of omission on the part of the Contractor or any other person or on account of any reason whatsoever and the Contractor binds itself and undertakes to comply with the directions of Employer to promptly return the 'Employer Issue Materials' without any demur or reservation, protest or contest.
- 8.0 That the Contractor shall keep the 'Employer Issue Materials' as a 'Trustee' on the Employer's behalf and the ownership of these materials shall always vest in Employer.
- 9.0 That the 'Employer Issue Materials' shall exclusively be used by the Contractor for performing the Works under the Contract and for no other work or purpose whatsoever, otherwise it will be treated as criminal breach of trust. Should however, at any time, any loss/damage occur to the 'Employer Issue Materials' in part or in full or the same or any part thereof is misused or converted or used for any other purposes other than the contractual purpose by the Contractor or the surplus unused materials and the wastage/scrap are not returned to Employer in terms of the Contract, then Employer shall be entitled to recover from the Contractor, the compensation at the specified rates under the Contract for and in respect of such misuse, loss, damage, or conversion or any other unauthorised use not intended under the Contract, without prejudice to any other remedies which may be available to Employer including deduction from any payment/dues to or any sum which at any time hereinafter may become due to the Contractor under the Contract.

- 10.0 In the event of any misuse, loss or damage as aforesaid, the assessment for such misuse, loss or damage and the assessment of the compensation thereof would be made by Employer or its authorised representatives and the said assessment shall be final and binding on the Contractor.
- 11.0 This Indemnity Bond shall be valid till six (6) calendar months after the scheduled date of completion of work under the Contract and shall be extended from time to time till the entire work under the Contract is successfully completed or earlier upon determination of contract and all the surplus/wastage/ scrap materials are fully returned and the account for 'Employer Issue Materials' is finally settled between the Contractor and Employer, whichever event is later.
- 12.0 It is clearly understood and agreed to by the Contractor that non-observance of the obligations under this Indemnity Bond by the Contractor shall Inter-alia constitute a criminal breach of trust on the part of the Contractor and he shall be liable for all legal/penal consequences thereof.
- 13.0 Now the condition of this Bond is that the Contractor shall duly and punctually comply with all the terms and conditions of this bond to the satisfaction of Employer, then, the above bond shall be void, but otherwise, it shall remain in full force and virtue.
- 14.0 That this bond shall not be irrevocable during its validity period and the Contractor shall not revoke this bond till it is discharged by Employer in writing.

WITNESS

.....
(Signature)
.....
(Name)
.....
Address)

(Signature)
(Name of Contractor).....
Name of the Authorised person (Official
having Power of Attorney.....
Designation
Seal.....

Notes :*** FOR PROPRIETARY CONCERNS**

Shri son of resident of carrying on business under the name and style of at (hereinafter called "the said Contractor" which expression shall unless the context requires otherwise include his heirs, executors, administrators and legal representatives).

*** FOR PARTNERSHIP CONCERNS**

M/s. a partnership firm with its office at (hereinafter called "the said Contractor" which expression shall unless the context requires otherwise include their heirs, executors, administrators and legal representatives), the names of their partners being (i) Sh. son of Sh.

(ii) Sh. son of Sh.

*** FOR COMPANIES**

M/s. a Company registered under the Companies Act, 1956 and having its registered office at in the State of and its head office at (hereinafter called "the said Contractor" which expression shall unless the context requires otherwise include its administrators, successors and assigns.)

**12. LETTER OF UNDERTAKING TO BE GIVEN BY CONTRACTOR WHILE FURNISHING THE
“INDEMNITY BOND” TO EMPLOYER FOR
“EMPLOYER ISSUE MATERIALS”**

**12. LETTER OF UNDERTAKING TO BE GIVEN BY CONTRACTOR
WHILE FURNISHING THE "INDEMNITY BOND" TO
EMPLOYER FOR "EMPLOYER ISSUE MATERIALS"**

To :
The Engineer-in-Charge

(_____ project)

_____(State)

From :
M/s. _____
(Contractor)

(_____ Project)

Name of Contract _____

Dear Sir,

Sub : Undertaking to be Submitted alongwith INDEMNITY BOND for "EMPLOYER ISSUE MATERIALS" under Contract No. _____ dated _____ .

- 1.0 This is to inform you that as per Clause No. _____ of SCC forming integral part of the Contract No. _____ dated _____ relating to "Employer Issue Materials", we have to submit to you an irrevocable and unconditional INDEMNITY BOND equivalent to the total value of "Employer Issue Materials" required for incorporation in the Works of "_____" awarded to us vide your LOA No. _____ dated _____ .
- 2.0 The amount of the aforesaid INDEMNITY BOND is dependent upon maximum quantity of Employer Issue Materials that will remain with us at any point of time during the execution of the Contract and is based on the prevailing market value of Employer Issue Materials, as given below :
- | | | | |
|----|---------------------|---|---|
| a. | Cement | : | Procurement Rate plus 25%. |
| b. | Reinforcement Steel | : | Max. rate of nearest Stockyard of SAIL for any section inclusive of GST plus 25%. |
| c. | Structural Steel | : | Average rates of nearest stockyard of SAIL for structural sections, pipes and plates inclusive of GST plus 25%. |
- 3.0 We agree that in the event of the aforesaid total quantity of "Employer Issue Materials" is to be increased during the execution of the contract for performance of the work or for the market value of the "Employer Issue Materials" increase for any reasons whatsoever, the amount of aforesaid INDEMNITY BOND shall be enhanced by us without any demur correspondingly, in accordance with the various provisions in clause _____ of the aforesaid conditions of Contract.

- 4.0 We further confirm and undertake to increase the value of the aforesaid INDEMNITY BOND in accordance with para 3.0 above within 30 days of the receipt of notice from Employer for enhancement of the value of the said Indemnity Bond failing which Employer shall have the absolute right to invoke the said Indemnity Bond which will be honoured by us without any demur, contest or protest. Further we undertake to extend the validity of the INDEMNITY BOND as required from time to time by Employer till the entire material is incorporated in the Works and the unutilised material including wastage, scrap etc. are returned to the Employer and the reconciliation of the total Employer Issue Materials is completed in all respects.
- 5.0 This undertaking is irrevocable and shall remain in force till the execution and performance of the entire contract and/or till it is discharged by Employer.

Thanking you,

Yours faithfully,

(Signature of Authorised Signatory.....)

Name & Designation.....

Name of Contractor.....

Name of the Work

Date :

Contract No.....

Place :

Date of Award.....

Seal of the Contractor.....

13. LETTER OF CONFIRMATION BY THE PROPOSED SUB-CONTRACTOR



13. LETTER OF CONFIRMATION BY THE PROPOSED SUB-CONTRACTOR

Bidder's Name & Address
To,

Jhabua Power Ltd (JV of NTPC LTD),
Village Barela, Post – Attaria , Tehsil – Ghansore
Madhya Pradesh-480997

Dear Sirs,

I / We M/s@..... have been proposed by M/s.@@.....
as a sub-contractor for the portion of work relating to\$...... under
Package.

We agree to work as subcontractor to M/s.@@..... for the aforesaid
portion of the work relating to\$...... under Package subject to award
of Contract to@@..... and on being approved by JPL-NTPC.

Date :
Place :
Contractor having Power

Signature.....
Printed Name of Authorised person of Sub-
of attorney.....
Designation.....
Common Seal.....

@ Write Name of the sub-contractor as proposed by the main Bidder.

@@ Write Name of the main Bidder.

\$ Write Particulars of the portion of the work for which the Sub-Contractor has been proposed.

Note : To be filled by Sub-Contractor(s) individually.

14. PROFORMA FOR MATERIAL ACCOUNTING & RECONCILIATION

14. PROFORMA FOR MATERIAL ACCOUNTING & RECONCILIATION

Name of Materials
Reconciliation

1. Name of the Contractor :
2. Name of the Project :
3. Name of the Work :
4. Contract No. & Date :
5. Location of the Contractor's Stock/godown :
6. Total Estimated Requirement in the Contract :
7. Value of the Material Security :
8. Indemnity Bond furnished towards the value of Security towards other Materials :
9. Value of security towards Materials under this Performance :

Note : i. Full Separate proforma for

- a. Cement
- b. M.S. Reinforcement (Sectionwise/Diameterwise)
- c. Tor-steel Reinforcement (Sectionwise/Diameterwise)
- d. Structural Steel

- ii. Same proforma to be used till it is filled by succeeding reconciliation. Fresh Proforma for each reconciliation is prohibited.

Sl. No.	Date of Reconciliation	Cumulative Qty. issued till last reconciliation	Cumulative Qty. incorporated in the Works as certified by the Engr.	Qty. returned	Qty. available in stock of contractor	Unaccounted C-(D+E+F) of unaccounted matl. (Col. G) effected. If so; amount recovered and bill/ MB No.	Whether recovered	Outstanding recoveries (cumulative till date)	Remarks
A	B	C	D	E	F	G	H	I	J

Note: 1 Reconciliation shall be done at minimum frequency of three (3) months.
(Signature of Engineer-in-Charge)

(Signature of Contractor's

Authorised Site Representative)

Name & Designation

Seal

**15. Form of Indemnity Bond to be
executed by the Contractor for
the Safe Custody of Equipments
brought to site by the Contractor**

**15. FORM OF INDEMNITY BOND TO BE EXECUTED
BY THE CONTRACTOR FOR SAFE CUSTODY OF
THE EQUIPMENTS BROUGHT TO SITE BY THE CONTRACTOR
FOR PERFORMANCE OF ITS CONTRACT
AND AGAINST WHICH PAYMENT TO BE MADE ON RECEIPT
(Entire Equipment Consignment in one lot)
(On non-Judicial stamp paper of appropriate value)**

INDEMNITY BOND

THIS INDEMNITY BOND is made thisday of.....
20..... by(Contractor's Name) a Company registered under the Companies
Act, 1956/Partnership firm/Proprietary concern having its Registered Office at
..... (hereinafter called as 'Contractor' or "Obligor" which expression shall include
its successors and permitted assigns) in favour of (Name of Employer), a
Company incorporated under the Companies Act, 1956 having its Registered Office at
..... and its project at (hereinafter called
"....." {Abbreviated name of the Employer}) which expression shall include its successors
and assigns) :

WHEREAS@..... has awarded to the Contractor a Contract for
.....vide its Notification of Award/Contract No.....dated and
its Amendment No. and Amendment No.....,
(applicable when amendments have been issued) (hereinafter called the Contract") in terms of which
.....(contractor)..... is required to keep in his safe custody various Equipments required for
execution of the Contract.

And WHEREAS by virtue of Clause No..... of the said Contract, the Contractor is
required to execute an Indemnity Bond in favour of.....@..... for safe custody of the
Equipments for the purpose of performance of the Contract/Erection portion of the contract
(hereinafter called the "Equipments")

AND THEREFORE, This Indemnity Bond witnesseth as follows:

1. That in consideration of various Equipments as mentioned in the Contract, valued at
(Currency and amount in Figures)..... (Currency and
amount in words) for the purpose of safe
custody and performance of the Contract, the Contractor hereby undertakes to indemnify
and shall keep@..... indemnified, for the twice the value of the Equipments. The
Contractor hereby acknowledges actual receipt of the Equipment etc. as detailed in the
Schedule appended hereto.

@ Fill in abbreviated name of Employer

2. That the Contractor is obliged and shall remain absolutely responsible for the safe transit/protection and custody of the Equipment at@..... project site against all risks whatsoever till the Equipments are duly used/erected in accordance with the terms of the Contract and the plant/package duly erected and commissioned in accordance with the terms of the Contract is taken over by@..... . The Contractor undertakes to keep@..... harmless against any loss or damage that may be caused to the Equipments.
3. The Contractor undertakes that the Equipments shall be used exclusively for the performance/execution of the Contract strictly in accordance with its terms and conditions and no part of the equipment shall be utilized for any other work of purpose whatsoever. It is clearly understood by the Contractor that non-observance of the obligations under this Indemnity Bond by the Contractor shall inter-alia constitute a criminal breach of trust on the part of the Contractor for all intents and purpose including legal/penal consequences.
4. That@..... is and shall remain the exclusive owner of the equipments free from all encumbrances, charges or liens of any kind, whatsoever. The Equipments shall at all times be open to inspection and checking by the Engineer-in-Charge or other employees/agents authorized by him in this regard. Further,@..... shall always be free at all times to take possession of the Equipments in whatever form the Equipments may be, if in its opinion, the equipments are likely to be endangered, misutilized or converted to uses other than those specified in the Contract, by any acts of omission or commission on the part of the Contractor or any other person or on account of any reason whatsoever and the Contractor binds himself and undertakes to comply with the directions of demand of@..... to return the Equipments without any demur or reservation.
5. That this Indemnity Bond is irrevocable. If at any time any loss or damage occurs to the Equipments or the same or any part thereof is misutilized in any manner whatsoever, then the Contractor hereby agrees that the decision of the Project Manager of@..... as to assessment of loss or damage to the Equipment shall be final and binding on the Contractor. The Contractor binds itself and undertakes to replace the lost and/or damaged Equipments at its own cost and/or shall pay the amount of loss to@..... without any demur, reservation or protest. This is without prejudice to any other right or remedy that may be available to@..... against the Contractor under the Contract and under this Indemnity Bond.
6. NOW THE CONDITION of this Bond is that if the Contractor shall duly and punctually comply with the terms and conditions of this Bond to the satisfaction of@....., THEN, the above Bond shall be void, but otherwise, it shall remain in full force and virtue.
@ Fill in abbreviated name of Employer

IN WITNESS WHEREOF, the Contractor has hereunto set its hand through its authorised representative under the common seal of the Company, the day, month and year first above mentioned.

SCHEDULE

Particulars of the Equipments	Quantity	Particulars of Despatch title Documents	Value of the Equipments	Signature of Attorney in token of receipt
		RR/GR/ Bill of lading Carrier No & Date		

For and on behalf of

.....
(Contractor's Name)

WITNESS :

- | | | |
|----|--------------------|---|
| 1. | 1. Signature | Signature |
| | 2. Name | Name |
| | 3. Address | Designation of
Authorised representative * |
| 2. | 1. Signature | (Common Seal) |
| | 2. Name | (In case of Company) |
| | 3. Address | |

* Indemnity Bond are to be executed by the authorized person and (i) in case of contracting Company under common seal of the Company or (ii) having the Power of Attorney issued under common seal of the company with authority to execute Indemnity Bond, (iii) In case of (ii), the original Power of Attorney if it is specifically for this Contract or a photostat copy of the Power of Attorney if it is General Power of Attorney and such documents should be attached to Indemnity Bond.

**FORM OF INDEMNITY BOND TO BE EXECUTED BY THE CONTRACTOR
FOR SAFE CUSTODY OF THE EQUIPMENTS BROUGHT TO SITE IN INSTALLMENTS BY THE
CONTRACTOR FOR
PERFORMANCE OF THE CONTRACT AND AGAINST WHICH PAYMENT
IS TO BE MADE ON RECEIPT AT SITE
(On Non-Judicial stamp paper of appropriate value)**

INDEMNITY BOND

THIS INDEMNITY BOND is made thisday of..... 20
..... by(Contractor's Name) a Company registered under the Companies
Act, 1956/Partnership firm/Proprietary concern having its Registered Office at
..... (hereinafter called as 'Contractor' or "Obligor" which expression shall include
its successors and permitted assigns) in favour of(Name of Employer), a Company
incorporated under the Companies Act, 1956 having its Registered Office at
..... and its project at (hereinafter called
"....." {Abbreviated name of the Employer}) which expression shall include its successors and
assigns) :

WHEREAS@..... has awarded to the Contractor a Contract forvide its
Notification of Award/Contract No.....dated and its
Amendment No. and Amendment No....., (applicable
when amendments have been issued) (hereinafter called the Contract") in terms of which
.....(contractor)..... is required to keep in his safe custody various Equipments for execution of the
Contract.

And WHEREAS by virtue of Clause No..... of the said Contract, the Contractor is
required to execute an Indemnity Bond in favour in@..... for the safe custody of Equipments
for the purpose of performance of the Contract/Erection portion of the contract (hereinafter called the
"Equipments")

NOW THEREFORE, This Indemnity Bond witnesseth as follows :

1. That in consideration of various Equipments as mentioned in the Contract, valued at
(Currency and amount in figures)..... (Currency and amount in words)
..... brought to site by the contractor in instalments from
time to time for the purpose of safe custody and performance of the Contract, the
Contractor hereby undertakes to indemnify and shall keep@..... indemnified, for
the twice the value of the Equipments. The Contractor hereby acknowledges actual receipt
of the initial instalment of the Equipment etc. at site as per details in the Schedule
appended hereto. Further, the Contractor agrees to acknowledge actual receipt of the
subsequent instalments of the Equipments etc. as required by@..... in the form of
Schedules consecutively numbered which shall be attached to this Indemnity Bond so as to
form integral parts of this Bond.

@ Fill in abbreviated name of Employer

2. That the Contractor is obliged and shall remain absolutely responsible for the safe transit/protection and custody of the Equipment at@..... project site against all risks whatsoever till the Equipments are duly used/erected in accordance with the terms of the Contract and the plant/package duly erected and commissioned in accordance with the terms of the Contract, is taken over by@..... . The Contractor undertakes to keep@..... harmless against any loss or damage that may be caused to the Equipments.
3. The Contractor undertakes that the equipments shall be used exclusively for the performance/execution of the Contract strictly in accordance with its terms and conditions and no part of the equipment shall be utilised for any other work of purpose whatsoever. It is clearly understood by the Contractor that non-observance of the obligations under this Indemnity Bond by the Contractor shall inter-alia constitute a criminal breach of trust on the part of the Contractor for all intents and purpose including legal/penal consequences.
4. That@..... is and shall remain the exclusive owner of the Equipments free from all encumbrances, charges or liens of any kind, whatsoever. The Equipments shall at all times be open to inspection and checking by the Project Manager or other employees/agents authorized by him in this regard. Further,@..... shall always be free at all times to take possession of the Equipments in whatever form the Equipments may be, if in its opinion, the equipments are likely to be endangered, misutilised or converted to uses other than those specified in the Contract, by any acts of omission or commission on the part of the Contractor or any other person or on account of any reason whatsoever and the Contractor binds himself and undertakes to comply with the directions of demand of@..... to return the Equipments without any demur or reservation.
5. That this Indemnity Bond is irrevocable. If at any time any loss or damage occurs to the Equipments or the same or any part thereof is mis-utilised in any manner whatsoever, then the Contractor hereby agrees that the decision of the Project Manager of@..... as to assessment of loss or damage to the Equipment shall be final and binding on the Contractor. The Contractor binds itself and undertakes to replace the lost and/or damaged Equipments at its own cost and/or shall pay the amount of loss to@..... without any demur, reservation or protest. This is without prejudice to any other right or remedy that may be available to@..... against the Contractor under the Contract and under this Indemnity Bond.
6. NOW THE CONDITION of this Bond is that if the Contractor shall duly and punctually comply with the terms and conditions of this Bond to the satisfaction of@....., THEN, the above Bond shall be void, but otherwise, it shall remain in full force and virtue.

@ Fill in abbreviated name of Employer



IN WITNESS WHEREOF, the Contractor has hereunto set its hand through its authorised representative under the common seal of the Company, the day, month and year first above mentioned.

SCHEDULE No.1

Particulars of the Equipments	Quantity	Particulars of Despatch title Documents	Value of the Equipments	Signature of Attorney in token of receipt
		RR/GR/ Bill of lading Carrier No & Date		

(Please number subsequent schedules)

For and on behalf of

.....
(Contractor's Name)

WITNESS

- | | | |
|----|--------------------|---|
| 1. | 1. Signature | Signature |
| | 2. Name | Name |
| | 3. Address | Designation of
Authorised representative * |
| 2. | 1. Signature | (Common Seal)
(In case of Company) |
| | 2. Name | |
| | 3. Address | |

* Indemnity Bond are to be executed by the authorised person and (i) in case of contracting Company under common seal of the Company or (ii) having the Power of Attorney issued under common seal of the company with authority to execute Indemnity Bond, (iii) In case of (ii), the original Power of Attorney if it is specifically for this Contract or a photostat copy of the Power of Attorney if it is General Power of Attorney and such documents should be attached to Indemnity Bond.

16. FORM OF INDEMNITY BOND
FOR REMOVAL/ DISPOSAL
OF SURPLUS MATERIAL

**16. FORM OF INDEMNITY BOND TO BE EXECUTED
BY THE CONTRACTOR WITH REGARD TO DISPOSAL OF
SURPLUS MATERIAL
(TO BE EXECUTED ON STAMP PAPER OF APPROPRIATE VALUE)**

INDEMNITY BOND

THIS INDEMNITY BOND executed thisday of..... 20 by
.....(Name of Company) a Company registered under the
Companies Act, 1956/Partnership Firm/Proprietary concern having its Registered Office(s) at
..... (Office Address) hereinafter called the
Indemnifier(s)/Contractor(s) (which expression shall, unless excluded by or repugnant to the context,
be deemed to mean and include its successors, administrators, executors and permitted assigns).

IN FAVOUR OF

Jhabua Power Ltd (JV of JPL-NTPC Limited (formerly National Thermal Power Corporation Ltd.), a
Government of India Enterprise, having its **Site Office** : Village Barela, Post Office-Attaria, Tehsil-
Ghansore, District Seoni-480997, Madhya Pradesh
(hereinafter referred to as "JPL-NTPC").

1. JPL-JPL-NTPC has awarded the Contractor(s), contract for execution of work ("Scope of Work") as mentioned in the contract agreement no. dated
....., entered into between JPL-NTPC and Contractor(s), relating to
..... (Name & Address of Project/Station)
(hereinafter called 'the Project').
2. The Indemnifier(s) for the purpose of execution of its Scope of Work had from time to time
procured and stored (Details of Material) at the
Project Site.
3. After completion of the Scope of Work by Indemnifier(s), it has been identified that scrap
..... (Details of Scrap Material & its quantity) and/or surplus
..... (Details of Surplus Material & its Quantity) belonging
to Indemnifier(s) is lying at the said Project Site.
4. Now, the scrap (Details of Scrap Material & its Quantity)
and/or surplus (Details of Surplus Material & its Quantity)
belonging to the Indemnifier(s), requires to be removed by Indemnifier(s) from the Project
Site.

NOW THEREFORE THIS INDEMNITY BOND WITNESSETH AS UNDER:

1. That Indemnifier(s) by way of this indemnity requests JPL-JPL-NTPC to issue necessary exit gate pass(es) in favour of Indemnifier(s) for removal of scrap..... (Details of Scrap Material & its Quantity) and/or surplus (Details of Surplus Material & its Quantity) belonging to Indemnifier(s), from the project.
2. That as per JPL-NTPC's procedure, Indemnifier(s) shall ensure loading of trucks for clearing of its scrap (Details of Scrap Material & its Quantity) and/or surplus (Details of Surplus Material & its Quantity) by itself, as aforesaid, under the supervision of CISF personnel.
3. That Indemnifier(s) in consideration of the premises above, for itself and its respective, executors, administrators and assigns, jointly and severally agree and undertake from time to time and at all times hereafter to indemnify JPL-NTPC and keep JPL-NTPC indemnified from and against all claims, demands, actions, liabilities and expenses which may be made or taken against or incurred by JPL-NTPC by reason of the issue of necessary gate pass(es) by JPL-NTPC and permitting Indemnifier(s) to remove scrap (Details of Scrap Material & its Quantity)..... and/or surplus (Details of Surplus Material & its Quantity) belonging to Indemnifier(s), from the project.
4. That Indemnifier(s) undertakes to indemnify and keep JPL-NTPC harmless from any act of omission or negligence on the part of the Contractor in following the statutory requirements with regard to removal/disposal of scrap and surplus belonging to Indemnifier(s), from the Project Site aforesaid, by the Indemnifier(s). Further, in case the laws require JPL-NTPC to take prior permission of the relevant Authorities before handing over the scrap and/or surplus to the Indemnifier, the same shall be obtained by the Indemnifier on behalf of JPL-NTPC.

IN WITNESS WHEREOF, the Indemnifier(s), through its authorized representative, has executed these presents on the Day, Month and Year first mentioned above at (Name of the Place)

Witness:

Indemnifier

1.

.....

2.

.....

(Authorised Signatory)

**17. FORM OF CONTRACT CLOSING CERTIFICATES
(Annexure-1.1 to Annexure-1.13)**



**JHABUA
POWER**



Annexure-1.1

PROFORMA OF CERTIFICATE OF FINAL AMENDMENT TO THE CONTRACT

(To BE ISSUED BY C&M dept.)

CERTIFICATE NO. CCP - 01

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR

DATED:

This is to certify that amendments have been issued to the aforesaid contract as per the details mentioned below:

	Amendment No.	Date
1.		
2.		
3.		
4.		
5.		

This is to certify further that Amendment No.----- dated is the last amendment issued.

Signature

Date
Place.....

Name... ..
Designation



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Annexure-1.2

PROFORMA FOR DRAWING RECEIPT CERTIFICATE

(TO BE ISSUED BY Executing Dept./EIC)

CERTIFICATE NO.CCP- 02

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR

DATED:

Project:

This is to certify that we have received all the drawings which were to be submitted by the Contractor in requisite number along with the reproducibles as detailed in Annexure enclosed herewith, as per provisions stipulated in the above mentioned LOA/Contract.

Signature

Date
Place.....

Name.....
Designation



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Annexure-1.3

PROFORMA FOR QA DOCUMENTS RECEIPT CERTIFICATE

(TO BE ISSUED BY FQA dept.)

CERTIFICATE NO. CCP-03

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR:

DATED:

Project:

This is to certify that the QA documents as per the list enclosed, in respect of the above mentioned LOA/ Contract has been received in line with the provisions of the Contract.

Signature

Date

Place.....

Name.....

Designation



PROFORMA FOR O&M MANUAL RECEIPT CERTIFICATE

(TO BE ISSUED BY Executing Dept./EIC)

CERTIFICATE NO. CCP - 04

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR:

DATED:

Project :

This is to certify that we have received from the contractor all the necessary O&M Manuals in requisite number including the list of spare parts along with the names of vendors in respect of the above LOA/contract. The consolidated list of such manuals received is enclosed along with the distribution as marked on the list.

Signature

Date.....

Name... ..

Place.....

Designation



PROFORM FOR SCOPE COMPLETION CERTIFICATE

(TO BE ISSUED BY Executing Dept./EIC)

CERTIFICATE NO. CCP- 05

NAME OF PACKAGE:

**LETTER OF AWARD/
NOA/CONTRACT NO.:**

NAME OF CONTRACTOR:

DATED:

Project :

1. This is to certify that the scope of the above Contract has been completed in line with the contract read in conjunction with the following documents:
 1. Final Amendment No. _____ (As per CCP -01)
 2. Approved drawings including site run piping schemes, if any.
 3. Approved Bill of Materials
 4. Material Dispatch Clearance Certificate (s)
 5. Measurement Book
 6. As Built Drawings
 7. Any other documents (specify)
2. It is further certified that the following have been supplied, as per the details given in the Contract Documents and the same have been taken over by JPL-NTPC.
 1. Mandatory Spares
 2. Recommended Spares
 3. Special Tools & Tackles

Signature

Date
Place.....

Name.....
Designation

PROFORMA FOR LIQUIDATED DAMAGES FOR DELAY CERTIFICATE

(TO BE ISSUED BY Executing Dept./EIC)

CERTIFICATE NO. CCP- 06

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO. :**

NAME OF CONTRACTOR:

DATED:

Project:

This is to certify that the issue regarding liquidated damages for delay as per the provisions of clause _____ of the above contract/ LOA has been resolved with the approval of the Competent authority vide reference _____ (copy enclosed).

Signature

Date
Place.....

Name.....
Designation

Note: In respect of cases where LD for delay is settled by Corporate Contract Services (CS), this certificate will be issued by CS and where LD for delay is settled by the Site / Region, the same will be issued by the concerned Site/Regional Offices.

Annexure-1.7

PROFORMA OF SHORTFALL IN EQUIPMENT PERFORMANCE CERTIFICATE

(TO BE ISSUED BY Executing Dept./EIC)

CERTIFICATE NO. CCP - 07

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR:

DATED:

PROJECT:

This is to certify that the following shortfall in equipment performance as compared to the guaranteed parameters have been assessed and agreed to with the contractor in respect of the above mentioned LOA/ Contract.

S.No	Guaranteed Parameter	Guaranteed	Assessed Value	Shortfall, if any.	liquidated damages
1	2	3	4	5	6

Further, it is also confirmed that liquidated damages for shortfall in equipment performance in respect of above Items, have been recovered fully from the contractor and no other dues are outstanding for shortfall in equipment performance.

Signature

Date

Place.....

Name.....

Designation

To be counter signed by Site Accounts.

Signature

Date.....

Place.....

Name.....

Designation



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Annexure-1.8

PROFORMA OF "MATERIAL RECONCILIATION" CERTIFICATE

(TO BE ISSUED BY Executing Dept./EIC & Site Materials Mgmt.)

CERTIFICATE NO. CCP - 08

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR:

DATED:

PROJECT:

This is to certify that the materials issued to the contractor in respect of the above mentioned LOA/Contract have been reconciled with the stipulations under the contract documents and no other recovery of material is pending with the contractor.

Signature

Date

Place.....

Name... ..

Designation

To be counter signed by materials management

-

Signature

Date

Place.....

Name... ..

Designation... ..

PROFORMA OF "PAYMENT RECONCILIATION" CERTIFICATE
(TO BE ISSUED BY Finance)

CERTIFICATE NO. CCP - 09

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR:

DATED:

PROJECT:

This is to certify that all the payments released to the contractor in respect of the above mentioned LOA/Contract have been reconciled with the provisions of the contract documents and statement of Accounts and or other Certificates of Contractor. It is observed that there are no recoveries pending under any of the items listed overleaf.

Signature

Date

Place.....

Name.....

Designation.....

Enclosure to CCP-09

The list of recoveries and claims as advised by site Erection Department should include all recoveries and claims on any account whatsoever, including the following:

1. Liquidated damages for delay.
2. Liquidated damages for shortfall in Performance as observed during shop-testing (by inspection deptt.)
3. Liquidated damages for shortfall in performance as observed during performance guarantee tests conducted at site and other site tests.
4. All recoveries /claims on account of variations/deviations to scope of contract permitted or otherwise taken place during execution of the contract as listed in certificate No. CCP.05 for contract closing (Certificate by site Erection for contract closing).
5. Recoveries on account of reconciliation of payments made under the contract.
6. All the claims against the contractor regarding clearance of materials from site and vacation of the premises allotted for site office, stores.
7. All claims in respect of Training/Transportation/Accommodation/Services provided by site in respect of above LOA/Contract.
8. Recoveries on account of settlement of insurance claims
9. Recoveries on account of reconciliation of materials issued to the Contractor.
10. All recoveries on account of demurrage, transportation, insurance premiums etc. and other recoveries as informed by T&CC group on account of port clearance, transportation etc.
11. All recoveries on account of wastage and scrap.
12. All recoveries/claims (if any) on account of maintenance of equipments.
13. All recoveries/claims (if any) on account of price variation.
14. All recoveries/claims (if any) on account of statutory dues paid on behalf of the Contractor by JPL-NTPC.
15. Royalty charges.
16. All recoveries/ claims (if any) on account of hiring out of JPL-NTPC's plant and equipment.
17. All recoveries/claims (if any) on account of water and electricity charges (if applicable).
18. Any other recoveries/claims against specific instructions.



**JHABUA
POWER**



Annexure-1.10

**PROFORMA OF CERTIFICATE REGARDING LABOUR PAYMENTS AND STATUTORY
REQUIREMENTS TO BE FURNISHED BY CONTRACTOR.**

(TO BE ISSUED BY THE CONTRACTOR)

CERTIFICATE NO. CCP - 10

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO. :**

NAME OF CONTRACTOR:

DATED:

PROJECT:

This is to certify that we have made all labour payments including PF Liabilities in respect of the above mentioned LOA/ Contract and no other payments in this regard is pending from us.

Further we confirm that all Statutory requirements have been complied with by us and in case any default is reported against us, we shall be solely responsible for the same.

Signature

Date

Place.....

Name.....

Designation



**PROFORMA OF "NO DEMAND CERTIFICATE" BY CONTRACTOR (TO BE ISSUED BY
THE CONTRACTOR)**

CERTIFICATE NO. CCP-11

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR:

DATED:

PROJECT:

We, M/s (Contractor) do hereby acknowledge and confirm that we have received the full and final payment due and payable to us from JPL-NTPC Ltd. in respect of our aforesaid LOA/Contract No... dated.....including amendments if any, issued by JPL-NTPC Ltd., to our entire satisfaction and we further confirm that we have no claim whatsoever pending with JPL-NTPC Ltd. under the said Contract.

Notwithstanding any protest recorded by us in any correspondence document, measurement books, and/or final bills etc., we waive all our rights to lodge any claim or protest in future under this contract.

We are issuing this "NO DEMAND CERTIFICATE" in favour of JPL-NTPC Ltd. with full knowledge and with our free consent without any undue influence, misrepresentation, coercion etc.

Signature

Date
Place.....

Name.....
Designation

(Company Common Seal)

(This certificate shall be accompanied by the Power of attorney of the signatory)



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Annexure-1.12

PROFORMA OF CERTIFICATE FOR COMPLETION OF WARRANTY PERIOD
(TO BE ISSUED BY Executing Dept./EIC)

CERTIFICATE NO. CCP-12

NAME OF PACKAGE:

**LETTER OF AWARD/ NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR:

DATED:

PROJECT:

This is to certify that the warranty period for the above mentioned LOA/Contract has been completed in line with the provisions of the contract.

Signature

Name & designation

Date



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Annexure-1.13

**PROFORMA OF "CERTIFICATE FOR RETURN OF BGs/ INDEMNITY BONDS
ETC."**

(TO BE ISSUED BY Finance)

CERTIFICATE NO. CCP-13

NAME OF PACKAGE:

**LETTER OF
AWARD/NOA/
CONTRACT NO.:**

NAME OF CONTRACTOR:

DATED: PROJECT:

This is to certify that all the *Bank Guarantee/ Indemnity bonds/ Insurance policies/ Collaborator's or Associate's Guarantee received for the above mentioned LOA/ Contract have been returned in original to the contractor.

Signature

Date

Place.....



FORM NO. 18(A)

PAGE 1 OF 1

**DECLARATION OF ABSENCE OF CONFLICT OF INTEREST WITH
INDEPENDENT ENGINEER**

To :

[Employer's Name and Address]

Dear Sirs,

**1.0 We, M/s..... (Name of the Contractor) have been
awarded the contractfor
(Name of.....the package) vide Notification (s) of Award
No..... dated.....**

2.0 As per the provisions of the contract, we hereby propose the following Experts from the
'Panel of Experts as Independent Engineer' enclosed in the Special Conditions of
Contract, as amended from time to time by Ministry of Power, for appointment of
one of them as 'Independent Engineer' for the Contract:

- 1.....
- 2.....
- 3.....
-

**3.0 We confirm that we do not have any conflict of interest with the aforesaid
experts and they have not been engaged for providing any services to us in the
last three years.**

4.0 We confirm that in case of any form of conflict of interest (possible or actual) which
may inadvertently emerge during the tenure of Independent Engineer, the same will
be duly reported to you.

5.0 We understand that the mechanism of Resolution of Dispute through Independent
Engineer may be put in abeyance, if any conflict of interest with us is found out
which have been intentionally concealed, and the matter may be referred to
Ministry of Power. Further, action may be taken against us in respect of Fraud
Prevention Policy of JPL-NTPC.

Date :
.....

Signature

Place :
.....

Printed Name

(Designation)

.....
(Common Seal)

.....

FORM NO. 18(B)
PAGE 1 OF 1**DECLARATION OF ABSENCE OF CONFLICT OF INTEREST WITH
CONCILIATION COMMITTEES OF INDEPENDENT EXPERTS
(CCIE)**To :
[Employer's Name and Address]

Dear Sirs,

**1.0 We, M/s (Name of the Contractor) have been
awarded the contract for
(Name of the package) vide Notification (s) of Award No..... dated.....**

2.0 As per the provisions of the contract, we hereby propose the following CCIEs, in priority order, as per the list enclosed in the Special Conditions of Contract, as amended from time to time by Ministry of Power, for finalization of CCIE by CEA:

- 1.....
- 2.....
- 3.....

3.0 We confirm that we do not have any conflict of interest with the aforesaid experts and they have not been engaged for providing any services to us in the last five years.

4.0 We confirm that in case of any form of conflict of interest (possible or actual) which may inadvertently emerge during the conciliation proceedings by CCIE, the same will be duly reported to you.

5.0 We understand that JPL-NTPC may withdraw from the conciliation proceedings, if any conflict of interest with us is found out which have been intentionally concealed, and the matter may be referred to Ministry of Power. Further, action may be taken against us in respect of Fraud Prevention Policy of JPL-NTPC.

Date :
.....

Signature

Place :
.....

Printed Name

(Designation)
.....



**JHABUA
POWER**

(Common Seal)

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